DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Arrests

Search Incident to Arrest

Arizona v. Gant

ARRESTS

I. PURPOSE

The purpose of this General Order is to set forth guidelines for the execution of warrants and arrests. It is the duty of every police officer to learn and know the laws of arrest, including informing the accused of his/her rights.

II. POLICY

It is the policy of the Olivette Police Department, through training and directives, to specify the responsibilities an officer has toward civil arrest. The Police Department shall maintain current written directives governing the execution of arrests, either by warrant or without a warrant. Commissioned officers of the Olivette Police Department, when called upon to do so, shall execute all legally issued warrants for arrests of persons or for searches within the corporate limits of Olivette, MO.

III. GENERAL

Law Enforcement Official's Power of Arrest: Missouri Revised Statute (RSMO) 544.216 gives law enforcement officers the authority to arrest a person based upon probable cause leading the officers to believe that the person has violated any state law, including misdemeanors and local ordinance violations over which such officer has jurisdiction. The offense need not be committed in the officer's presence. However, officers need to be "certified" by P.O.S.T. before they acquire general powers of arrest (August 28, 1986).

IV. DEFINTIONS

A. ARREST - The actual restraint of the person being arrested, or by the person's submission to the custody of the officer, under authority of a warrant or otherwise.

B. ARREST WARRANT - A written order directing the arrest of a person or persons, issued by a court, body, or officials, having authority to issue warrants of arrest.

C. CAPIAS WARRANT - A writ requiring the officer to take the physical body into custody and transfer to the court system.

D. EXIGENT CIRCUMSTANCES - Circumstances requiring immediate action or aid.

E. PROBABLE CAUSE - A reasonable ground for supposing that a criminal charge is well-founded.

F. REASONABLE SUSPICION - It is suspicion founded upon circumstances sufficiently strong to warrant a reasonable person in belief that a charge is true.

G. SEARCH WARRANT - An order that certain premises or property be searched for particularized items which, if found, are to be seized and used as evidence in a criminal trial or destroyed as contraband.

V. PROCEDURE

A. Every police officer is empowered to arrest without a warrant in every case when an offense is committed, or is attempted, in his/her presence or view, or in cases where the offense was not committed in his/her presence and the officer has reasonable cause to believe that the person being arrested has committed the offense. An offense is defined as a felony, misdemeanor, or ordinance violation, punishable by law. Non-pursuit arrests made outside Olivette, without a warrant, must be for violations of state law.

B. When a person is arrested for any offense, the arresting officer may search that person and seize evidence of a crime as well as weapons and other things to prevent an escape from custody. A lawful custodial arrest, with or without a warrant, justifies a search incident to that arrest and no further justification is required. Once initiated, the search includes not only the person arrested, but extends to the area within his immediate control.

C. New court decisions that add to the substantive law of arrest will be reviewed and the Department's General Orders Manual will be updated in a timely fashion.

D. WITHOUT A WARRANT

1. When a warrantless arrest is made for a violation of Missouri state law, the offender shall be confined in the holdover facility for a period not to exceed 24 hours from the time of their arrest or released Pending Application of Warrant (PAW). If an in-custody warrant application is to be made to the St. Louis County Prosecuting Attorney's office, the investigating officer(s) will assemble the known facts and evidence surrounding the case. Every effort will be made to

present the facts of the case within the 24 hours, to the appropriate prosecuting official who will determine whether there is enough evidence to proceed with prosecution. If the prosecutor issues an affidavit charging the individual with a crime, said affidavit will be presented to a circuit court judge for the issuance of a warrant and setting of bail. The warrant will be served on the offender and he/she will then be remanded to the custody of the St. Louis County Detention Facility.

2. Should the prosecutor refuse to issue an affidavit; the offender shall be released from custody on said charge(s) as quickly as possible.

3. In the event the officer is unable to assemble the known facts and evidence within the 24-hour period, the offender will be released from custody. In no event should the offender be held, without a warrant, more than 24 hours from the time of arrest.

4. If a warrantless arrest is made for a violation of a municipal ordinance, the offender may be:

a. Issued a Missouri Uniform Complaint and Summons and released at the scene.

b. Conveyed to the Olivette Police Department, booked and released after a Missouri Uniform Complaint and Summons has been issued.

c. Conveyed to the Olivette Police Department and booked. Any person in custody related to a municipal ordinance violation shall not be held more than 24 hours without a warrant. If the arresting officer believes there is probable cause to hold the prisoner for a bond, he/she will complete a Municipal Court Warrant Application form and a Municipal Court Probable Cause Statement form and submit both forms to the Municipal Court for consideration. If the Olivette Prosecuting Attorney denies the request, the offender will be released as quickly as possible.

E. WITH A WARRANT

1. If the warrant is active, the officer will take the person into custody.

a. If the arrest is based on a warrant from an outside agency, the offender will be conveyed to the Olivette Police Department and booked as "Fugitive". The agency that issued the warrant will be notified when the offender is ready for transfer.

b. If the arrest is based on an Olivette Municipal Court warrant, the offender will be conveyed to the Olivette Police Department and booked for the appropriate charge(s). The offender will be held for the bond amount authorized on the warrant. If the offender is unable to post bond,

he/she will not be held longer than 48 hours for minor traffic violations or 72 hours for all other charges, unless authorized by the Court. Whether or not the person is in custody for a minor traffic violation, anyone being held shall be entitled to have the conditions of their release reviewed by the judge. The police department is directed to contact either the court administrator or the judge, in order to facilitate communication between the arrested person and the judge. Said communication may occur over the telephone or in person.

If practicable, the judge shall conduct an arraignment at the holding facility in order to review with the defendant all pending charges and the conditions of release, if any. Said arraignment must be held within 48 hours for minor traffic violations and within 72 hours for all other offenses.

2. If a warrant cannot be verified, the officer will not arrest based on the warrant.

VI. DUTY TO ARREST

It is the duty of every police officer to arrest, with or without warrant, as specified in section IV. The exercise of the power to arrest without warrant should be accompanied by prudence and discretion, with enough probable cause and supporting evidence to support the arrest.

VII. DISCRETION

A. Definition

Police Discretion: A power or right conferred upon an officer by law of acting officially in certain circumstances according to the dictates of their own judgment, conscience, uncontrolled by the judgment or conscience of others.

B. It is the policy of the Olivette Police Department that the exercising of discretion by its officers be based on the premise of successfully resolving the problem at hand with a minimum of intrusion and use of coercion by the individual officer. Department members, whether on or off-duty, are expected to conduct themselves in accordance with statutory limits, policies of this Department, supervisor's directions, and in such a manner as would reflect favorably upon themselves, this Department, and the profession of police service.

C. On-Duty Authority and Responsibility within the City Limits

While on-duty within the City limits, police officers have the full authority for making arrests granted to peace officers by Missouri Statute. After evaluation of the situation at hand, officers are expected to take all steps necessary and consistent with their

assignment, to protect life and property, and to enforce the ordinances of the City of Olivette, the State of Missouri and the laws of the United States.

D. Outside the City Limits, but within the State of Missouri

While on-duty outside the City limits, police officers have the authority to arrest on matters of direct concern to the City of Olivette. Except in emergency situations, officers are required to notify local jurisdiction of a planned arrest in enough time for local officers to be present at the arrest. In emergency situations, the local jurisdiction should be notified as soon as possible after the arrest.

E. Discretion Guidelines

Police officers are expected to use discretion of their authority in compliance with law, public safety, and in furtherance of Department goals and objectives, and in compliance with the Police Code of Ethics.

VIII. RSMO 70.820 - AMENDED STATE STATUTE

Amended state statute RSMO 70.820 and RSMO 544.216 allows certified police officers of 1st Class counties (St. Louis County) and cities not within a county (City of St. Louis) to make arrests on State offenses in any county of the 1st Class in Missouri. The 1st class counties are:

a. St. Louis
b. St. Charles
c. Jefferson
d. Franklin
e. Boone
f. Clay
g. Buchanan
h. Greene
i. Jasper
j. Platte
k. Camden
l. Cape Girardeau
m. Cass
n. Cole
o. Jackson
p. Christian
q. St. Francois
r. Taney

In addition, a law enforcement officer may arrest on view, and without a warrant, at any place within this state, any person the officer sees asserting physical force or using forcible compulsion for the purpose of causing or creating a substantial risk of death or

serious physical injury to any person or any person the officer sees committing a dangerous felony as defined in RSMO 556.061. Any such action shall be deemed to be within the scope of the officer's employment.

IX. ALTERNATIVES TO ARREST

A. When confronted with situations involving non-serious criminal conduct, such as minor ordinance and traffic violations, the police officer should examine possible alternatives to arrest and confinement such as:

1. Citations

2. Summons

3. Referrals

4. Warnings

B. The severity of enforcement action, or interaction, must not be influenced by malice, vengeance, prejudice based upon race, sex, ethnic background, religious belief, or political affiliation.

C. Enforcement action must not be more severe than can be reasonably and objectively justified to further Department goals and objectives.

D. Enforcement action or contact may not be extended unnecessarily for the purpose of delaying the release or inhibiting the free movement of any person.

X. SEARCHING INCIDENT TO ARREST

A. Persons

1. All arrested persons will be searched at the time and place of arrest and searched again when booked.

2. Arrestees will not be allowed to roam unrestrained at the scene of an arrest.

B. Vehicles

In Arizona v. Gant, the Court ruled that police may search the passenger compartment of a vehicle incident to the arrest of an occupant ONLY when the officer has a reasonable belief that the arrestee might either access the vehicle at the time of the search, or that the vehicle contains evidence of the offense for which the arrest took place.

In order to justify such searches, officers will be required to demonstrate an actual and continuing threat to their safety by the arrestee, or the need to preserve evidence for which the arrest was made from tampering by the arrestee.

XI. HANDCUFFING OF ARRESTEES

Officers shall handcuff (double-locked) prisoners with their hands behind their back. If this is not feasible, prisoners may be handcuffed in front; however, leg irons must also be used. Belly chains may also be utilized, if necessary. Prisoners will not be handcuffed or otherwise secured to the transporting vehicle. The legs of prisoners who are combative or who pose a flight risk may be restrained using leg restraints. Prisoners may not be placed in a position that would pose a risk of positional asphyxia. Examples of positions or conditions that could elevate the risk of positional asphyxia are, but not limited to, when the detainee is restrained face-up or face-down with pressure on the back or chest, the restrained detainee violently struggles against personnel's restraint attempts, the restrained detainee is intoxicated, when the restrained detainee has received a TASER or chemical agent deployment.

XI. IMMUNITY FROM ARREST

Certain persons are protected from prosecution, arrest, and detention by police under the law. This protection ranges from complete immunity for any offense, to limited immunity for minor violations. It is important that law enforcement and judicial authorities of the United States always treat foreign diplomatic and consular personnel with respect and with due regard for the privileges and immunities to which they are entitled under international law. Any failure to do so has the potential of casting doubt on the commitment of the United States to carry out its international obligations or of negatively influencing larger foreign policy interests.

A. INDIVIDUALS WITH DIPLOMATIC IMMUNITY

1. **Diplomatic Agents -** Diplomatic agents enjoy the highest degree of privileges and immunities. They enjoy complete personal inviolability, which means that they may not be handcuffed (except in extraordinary circumstances), arrested, or detained; and neither their property (including vehicles) nor residences may be entered or searched. Diplomatic agents also enjoy complete immunity from the criminal jurisdiction of the host country's courts and thus cannot be prosecuted no matter how serious the offense unless their immunity is waived by the sending state. Finally, they enjoy complete immunity from the obligation to provide evidence as witnesses and cannot be required to testify even, for example, if they have been the victim of a crime. Family members forming part of the household of diplomatic agents enjoy precisely the same privileges and immunities as do the sponsoring diplomatic agents.

2. Members of Administrative and Technical Staff - Members of the administrative and technical staff of a diplomatic mission perform tasks critical to the inner workings of the embassy. Accordingly, they enjoy privileges and immunities identical to those of

diplomatic agents in respect of personal inviolability, immunity from criminal jurisdiction, and immunity from the obligation to provide evidence as witnesses. Like those of diplomatic agents, the recognized family members of administrative and technical staff enjoy the same privileges and immunities from the host country's criminal jurisdiction as their sponsors.

3. Members of Service Staff - Members of the service staff of diplomatic missions perform less critical support tasks for the missions and are accorded much less in the way of privileges and immunities than are those in the other categories. Service staff members have official acts immunity only (see further explanation below) and enjoy no personal inviolability, no inviolability of property, and no immunity from the obligation to provide evidence as witnesses. The families of service staff members enjoy no privileges or immunities.

4. **Consular Officers -** Consular officers are those members of consular posts who are recognized by both the sending and the host country as fully authorized to perform the broad array of formal consular functions. They have only official acts or functional immunity in respect to both criminal and civil matters, and their personal inviolability is quite limited. Consular officers may be arrested or detained pending trial only if the offense is a felony and the arrest is made pursuant to a decision by a competent judicial authority (e.g., a warrant issued by an appropriate court). They can be prosecuted for misdemeanors but remain at liberty pending trial or other disposition of charges.

5. Consular Employees - Consular employees perform the administrative and technical support services for the consular post. They have no personal inviolability, only official acts immunity, and enjoy immunity from the obligation to provide evidence as witnesses only in respect of official acts. Their family members enjoy no personal inviolability or jurisdictional immunities of any kind.

6. **Consular Service Staff -** Consular service staff do not enjoy personal inviolability or jurisdictional immunity of any kind, but they do have immunity from the obligation to provide evidence as witnesses in respect of official acts. Their family members enjoy no personal inviolability or jurisdictional immunity of any kind.

7. **Nationals or Permanent Residents of the United States -** Consular employees and consular service staff who are U.S. nationals, legal permanent residents, or who are permanently resident in the United States enjoy no personal inviolability or jurisdictional immunity in the United States.

8. **Honorary Consuls -** Honorary consuls are American citizens or permanent resident aliens who perform consular services on a part-time basis. Honorary consuls, unlike career consuls, are permitted to carry on another business. These persons have official acts immunity only and immunity from the obligation to provide evidence as witnesses only in respect to official acts. They do not enjoy personal inviolability and may be arrested pending trial if circumstances should otherwise warrant. Family members enjoy no immunity or personal inviolability.

B. INCIDENT WITH A DIPLOMAT WITH IMMUNITY

1. Upon securing the scene, the first responsibility of the officer should be to verify the status of the suspect. Should the person be unable to produce satisfactory identification and the situation be one that would normally warrant arrest or detention, the officer should inform the individual that he or she will be detained until his or her identity can be confirmed. An example of U.S. Department of State ID cards is included in the Appendix of this policy.

2. The Watch Commander will be called to the scene and made aware of the possible detainment of a Diplomat.

3. In all cases, including those in which the suspect provides a U.S. Department of State-issued identification card, the law enforcement officer should verify the suspect's status by contacting the U.S. Department of State.

4. Upon verification from the U.S. Department of State, determine the suspects level of immunity and follow the guidelines provided in the following Appendix.

C. U.S. DEPARTMENT OF STATE ADVISORY

1. It is important that law enforcement and judicial authorities of the United States always treat foreign diplomatic and consular personnel with respect and with due regard for the privileges and immunities to which they are entitled under international law. Any failure to do so has the potential of casting doubt on the commitment of the United States to carry out its international obligations or of negatively influencing larger foreign policy interests.

2. As stated above, however, appropriate caution should not become a total "hands off" attitude in connection with criminal law enforcement actions involving diplomats. Foreign diplomats who violate traffic laws should be cited. Allegations of serious crimes should be fully investigated, promptly reported to the U.S. Department of State, and procedurally developed to the maximum permissible extent. Local law enforcement authorities should never be inhibited in their efforts to protect the public welfare in extreme situations. The U.S. Department of State should be advised promptly of any serious difficulties arising in connection with diplomatic or consular personnel. Law enforcement and judicial authorities should feel free to contact the U.S. Department of State for general advice on any matter concerning diplomatic or consular personnel.

3. For further, the U.S. Department of State Diplomatic and Consular Immunity: Guidance for Law Enforcement and Judicial Authorities is available in the procedures section of PowerDMS.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
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